

DISH Technologies L.L.C. v. Gaia, Inc.

Five adaptive-bitrate streaming patents asserted against Gaia's HLS platform, involving client-side bitrate selection, streamlets, TCP delivery, network-performance factors, and buffer continuity.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-20	D. Colo.	1:26-cv-03835	Patent Infringement

Prepared 2026-08-25. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

Public filing, likely recipient, and technical frame

CAPTION	DISH Technologies L.L.C. et al. v. Gaia, Inc.
FORUM / DOCKET	D. Colo. / 1:26-cv-03835
FILED / TYPE	2026-08-20 / patent infringement
PUBLIC DOCKET	Open docket

VERIFIED PUBLIC RECORD

DISH Technologies L.L.C. et al. v. Gaia, Inc., No. 1:26-cv-03835, filed 2026-08-20 in D. Colo..

LIKELY RESEARCH PURCHASER

Kurt M. Pankratz - Baker Botts L.L.P.; named matter counsel. The public docket identifies Pankratz as the attorney who filed the complaint for both plaintiffs. Selecting the complaint filer as likely purchaser is an analytical inference from that role.

kurt.pankratz@bakerbotts.com - publicly listed on the [official firm biography](#); not inferred.

TECHNICAL FRAME

Five adaptive-bitrate streaming patents asserted against Gaia's HLS platform, involving client-side bitrate selection, streamlets, TCP delivery, network-performance factors, and buffer continuity.

Secondary-source limitation: This is a preliminary technical frame based on public sources. Filed pleadings, claim charts, discovery, source code, product versions, and admissible evidence must control. [Open public synopsis](#)

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 Claim mapping and accused operation

Claim mapping and accused operation: How Gaia HLS clients measure throughput and buffer state, select renditions and segments, stage streamlets over TCP, and avoid playback interruption across platforms and versions.

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

02 Technical meaning and ordinary skill

Technical meaning and ordinary skill: what would a person of ordinary skill have understood the asserted computing, media, networking, or telephony terms to mean at the relevant priority dates?

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

03 Architecture and causation

Architecture and causation: which device, client, server, network element, or code module performs each claimed step, in what order, and under what configurations?

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

04 Versioning and proof

Versioning and proof: which source-code branches, protocol traces, media samples, configuration records, test captures, and product versions are needed for reproducible analysis?

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

Questions likely to require expert input

05 Validity and technical contribution

Validity and technical contribution: what dated publications, standards, patents, products, and implementations disclose the claimed elements, and what technical value is attributable to the claimed combination rather than conventional components?

Potential evidence: Pleadings and claim charts; source code or engineering records; product and version documentation; standards and prior art; reproducible testing; and fact or technical testimony as applicable.

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 Nick Feamster

Neubauer Professor of Computer Science and Faculty Director of Research, Data Science Institute, University of Chicago

TECHNICAL FIT

Internet measurement, video technologies, software-defined networking, privacy, and deployed network systems. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Built early live-television-over-Internet systems and researches network performance and security. His official homepage states experience as an expert witness in software patent, copyright, trade-secret, privacy, and other technology litigation, including federal trial testimony.

PUBLIC LITIGATION EXPERIENCE

Official University of Chicago homepage states that he serves as an expert witness in technology litigation and has federal trial-testimony experience in software patent, copyright, trade-secret, privacy, and related matters.

POINTS FOR FURTHER DILIGENCE

Broad systems expert rather than a narrow specialist in a particular codec, Apple framework, or telephony switch; active expert practice requires careful conflicts diligence. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | feamster@uchicago.edu | [public email source](#)

02 Vijay Sivaraman

Professor of Electrical Engineering and Telecommunications, UNSW Sydney

TECHNICAL FIT

Video-streaming delivery, network performance, software-defined networking, gaming traffic, and IoT systems. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

UNSW describes his work on architectures and algorithms for video streaming and gaming. Led an ARC project on interactive scalable media over software-defined networks and publishes network-measurement studies of cloud gaming.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Vijay Sivaraman was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Primarily a network-architecture expert; would need a codec or application specialist for elementary-stream and media-composition questions. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | vijay@unsw.edu.au | [public email source](#)

Candidates 3-4 for further diligence

03 Henning Schulzrinne

Julian Clarence Levi Professor of Computer Science and Professor of Electrical Engineering, Columbia University

TECHNICAL FIT

Internet telephony, RTP, RTSP, SIP, multimedia protocols, signaling, quality of service, and network measurement. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Co-developed RTP, RTSP, and SIP, protocols used across Internet telephony and multimedia applications. Published more than 250 papers and more than 70 Internet RFCs; formerly FCC CTO and technology advisor.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Henning Schulzrinne was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Protocol and architecture fit is exceptional, but product-specific source-code, codec, and mobile UI analysis may require complementary specialists. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | hgs@cs.columbia.edu | [public email source](#)

04 Keith W. Ross

Professor of Computer Science, NYU Abu Dhabi, with affiliated NYU appointments

TECHNICAL FIT

Computer networking, voice/video applications, content distribution, peer-to-peer systems, and network performance. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Coauthor of Computer Networking: A Top-Down Approach. Co-founded Wimba, which developed voice and video applications for online learning; earlier research spans Internet measurement and content distribution.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Keith W. Ross was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

His current research emphasis is AI, so contemporaneous streaming work may be more historical than current; not a codec implementation specialist. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#) | [Source 3](#)

[Draft email](#) | keithwross@nyu.edu | [public email source](#)

Candidates 5-6 for further diligence

05 Christian Timmerer

University Professor and Head, Institute of Information Technology, University of Klagenfurt

TECHNICAL FIT

Dynamic adaptive streaming over HTTP, MPEG-DASH, multimedia adaptation, caching, servers, and immersive-media delivery. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Active contributor and editor in MPEG-DASH, MPEG Media Transport, MPEG-V, and MPEG-21 work. Publishes tutorials and systems research on adaptive streaming from content creation through client consumption.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Christian Timmerer was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Strong standards and adaptive-delivery fit, but less suited to U.S.-specific prior-art authentication or proprietary application source-code analysis without support. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | christian.timmerer@itec.aau.at | [public email source](#)

06 Pablo César

Group Leader, Distributed and Interactive Systems, CWI; Professor, TU Delft

TECHNICAL FIT

Distributed interactive media, real-time communication, media-object control, multimedia systems, and quality of experience. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Leads CWI research on complex collections of media objects distributed in time and space. Work on multiparty real-time communication, volumetric video, compression, and delivery has entered MPEG and ITU processes.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Pablo César was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Most direct fit is distributed interactive media and user experience, not OS kernel internals, classic information retrieval, or patent-priority historical analysis. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#)

[Draft email](#) | P.S.Cesar@cwi.nl | [public email source](#)

Candidates 7-8 for further diligence

07 Touradj Ebrahimi

Adjunct Professor and Head, Multimedia Signal Processing Group, EPFL

TECHNICAL FIT

Image and video coding, multimedia compression, quality, media security, and JPEG/MPEG standardization. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Convenor of JPEG standardization and holder of 14 patents; contributed to MPEG-4 and JPEG 2000. Former Sony researcher and AT&T Bell Laboratories consultant in low-bitrate video coding.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Touradj Ebrahimi was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Deep coding expertise but less direct fit for HTTP adaptation logic, telephony identity policies, or application-layer user interfaces. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | touradj.ebrahimi@epfl.ch | [public email source](#)

08 Alan C. Bovik

Professor Emeritus, Chandra Department of Electrical and Computer Engineering, University of Texas at Austin

TECHNICAL FIT

Video quality, image/video processing, compression, digital television, and perceptual measurement. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Developed widely used video-quality prediction models and received a Primetime Emmy for engineering development. Published more than 800 technical articles and holds multiple U.S. patents in image and video processing.

PUBLIC LITIGATION EXPERIENCE

A public USPTO filing contains his declaration stating that he was retained as an independent expert witness in Microsoft Corp. v. Biscotti Inc., IPR2014-01457; public court and ITC records show additional technical expert work.

POINTS FOR FURTHER DILIGENCE

Best for coding, image processing, quality, and visual-media questions; less direct on HTTP adaptation, telephony, and UI workflows. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#) | [Source 3](#)

[Draft email](#) | bovik@ece.utexas.edu | [public email source](#)

Candidates 9-10 for further diligence

09 Mark Handley

Professor of Networked Systems, University College London

TECHNICAL FIT

Internet multimedia, RTP/SIP/SDP, congestion control, transport protocols, and deployable network systems. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Coauthored Internet standards including SIP and SDP and made foundational contributions to Internet multicast and telephony. Research includes multimedia conferencing, congestion control, Multipath TCP, and high-performance transport.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Mark Handley was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Strong protocol and transport expert, but not primarily a video-codec, mobile-application, or sensor-fusion specialist. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#) | [Source 3](#)

[Draft email](#) | m.handley@ucl.ac.uk | [public email source](#)

10 Ion Stoica

Tony Xu and Patti Bao Chancellor's Chair in Computer Science and Director, Sky Computing Lab, UC Berkeley

TECHNICAL FIT

Distributed systems, content delivery, cloud systems, network architecture, and deployable streaming platforms. For DISH Technologies L.L.C. et al. v. Gaia, Inc., the fit is specifically HLS adaptive-bitrate streaming, client-side bitrate selection, streamlets, TCP delivery, performance factors, and buffer continuity.

RELEVANT WORK

Co-founded Conviva Networks, whose technology measures and optimizes Internet video delivery. Research includes Dynamic Packet State, Chord, Ray, Apache Spark, Mesos, and cloud/distributed systems.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public expert report, declaration, deposition, or trial-testimony record for Ion Stoica was located in a bounded public-web search. This is not proof that the candidate has never served in litigation; PACER, paid expert databases, retention records, and conflict systems were not searched.

POINTS FOR FURTHER DILIGENCE

Now focused largely on AI and cloud systems; would need a video-codec or UI specialist for content-format and user-interaction limitations. Matter-specific diligence should also test independence from the parties, patents, accused products, and counsel; no conflict clearance has been performed.

[Source 1](#) | [Source 2](#)

[Draft email](#) | istoica@eecs.berkeley.edu | [public email source](#)

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.
- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.
- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.
- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

[Schedule a 15-minute conversation](#)

CORE SOURCES

Public docket: <https://dockets.justia.com/docket/colorado/codce/1%3A2026cv03835/258076>

Official attorney biography and email: <https://ai-lab.exparte.com/attorney/474370/kurt-pankratzt>

Public technical context source: <https://ai-lab.exparte.com/case/dct/cod/1%3A26-cv-03835/doc/analysis/1>

LIMITATIONS

This is a preliminary technical frame based on public sources. Filed pleadings, claim charts, discovery, source code, product versions, and admissible evidence must control.

No attorney or expert was contacted. Availability, interest, compensation, and conflicts were not checked.